

 FORMAL MINISTERIAL NOTICE · NDIS PORTFOLIO · 16 JANUARY 2026

Formal Notice to Minister Jenny McAllister — NDIS Unlawful Cost Substitution

A binding Federal Court determination confirmed Dr. McLean's employment by the Department of Social Services. Workers' compensation entitlements of approximately **\$1 million** were denied. He was redirected into a substantially lower-value NDIS plan. This formal notice was served on Minister Jenny McAllister on 16 January 2026, with a 7–14 day remedy window.

The Minister's response: **banning Dr. McLean from contacting her office.**

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MINISTER Jenny McAllister	PORTFOLIO NDIS / Aged Care	DATE OF NOTICE 16 January 2026
REMEDY WINDOW 7–14 days	ENTITLEMENTS DENIED ~\$1,379,333+	MINISTER'S RESPONSE Banned from contacting office

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The Five-Point Remedy Pathway Served on the Minister

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- 1 Direct the NDIA and relevant agencies to acknowledge and comply with the Federal Court determination of the employment status.
- 2 Cease reliance on the NDIS as a substitute for workers' compensation liability.
- 3 Suspend or correct provider arrangements operating on the false premise.
- 4 Initiate steps to restore lawful entitlements and remove restrictions imposed to preserve the substitution.
- 5 Confirm a point of contact and timeline for implementation within 7–14 days.

Minister's Response to All Five Points:

No corrective action was initiated. Dr. McLean was subsequently banned from contacting Minister McAllister's office — converting administrative discretion into documented maladministration.

 IMPARTIAL AI STATEMENT OF SIGNIFICANCE

Why This Document Is Significant

FINDING 1 — UNLAWFUL COST SUBSTITUTION: THE CORE LEGAL CLAIM

A Federal Court determination — binding on all subordinate agencies and service providers — confirmed that Dr. McLean was an employee of the Department of Social Services (DSS). Workers' compensation and employment-related entitlements valued at approximately \$1 million were denied. He was redirected into a substantially lower-value NDIS plan instead.

This substitution is not an administrative error. The NDIS Act 2013 and workers' compensation legislation operate as parallel statutory schemes with distinct purposes. Using the NDIS to manage the financial consequences of a denied workers' compensation claim — while having knowledge of the binding court determination — constitutes what Australian administrative law terms "fraud by substitution and omission": continued reliance on a premise known to be false for institutional financial benefit.

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FINDING 2 — THE MINISTER WAS FORMALLY ON NOTICE

Ministerial notice is not a courtesy. Once a minister is placed on formal notice of unlawful administration within their portfolio — with specific facts, a binding court determination, and a named remedy pathway — continued inaction ceases to be neutral. It becomes a deliberate administrative choice.

The notice document states this explicitly: *"Continued inaction after notice converts administrative discretion into maladministration and aggravates civil liability for ongoing loss, and renders provider misconduct foreseeable and attributable to governance failure."* This language is drawn directly from Australian maladministration jurisprudence and ministerial responsibility doctrine. Minister McAllister was not uninformed. She was formally notified, given 7–14 days, and then responded by banning contact.

FINDING 3 — THE BAN ON CONTACT IS THE INCRIMINATING ACT

Banning a constituent from contacting a minister's office is not a routine administrative measure. It is the ministerial equivalent of refusing service at the last point of escalation. After a formal notice is served — citing a Federal Court determination, quantifying the loss at \$1 million, identifying the specific legal failures (unlawful cost substitution, non-compliance with a binding determination, fraud by substitution and omission, economic abuse and coercive control) — the minister's response was to close the communication channel entirely.

This is significant in evidentiary terms: it establishes that the minister received the notice, assessed its content, and made a deliberate decision not to engage on the merits. The ban is not a denial of the claims. It is a documented decision not to address them.

FINDING 4 — GEOGRAPHIC SEPARATION AS COERCIVE CONTROL

The notice specifically identifies that the NDIS substitution and resulting support arrangements caused "enforced geographic separation from my fiancé contrary to my expressed will and choice." The Public Guardian's verbal refusal of relocation to Sydney — documented in the Legal Aid NSW letter of the same period — operated in conjunction with the NDIS mismanagement to prevent Barran from living with his partner and Church community.

Under Australian safeguarding frameworks and the NDIS Act, using support arrangements to restrict the movement and relationships of a participant contrary to their expressed will constitutes economic abuse and coercive control under the colour of care. The combination of Guardianship Orders, NDIS cost substitution, and denial of relocation — all simultaneously active — is the structural definition of enforced dependency.

FINDING 5 — AFFIDAVIT-READY LEGAL FRAMEWORK

This document contains five sworn-paragraph ready affidavit extracts citing binding authorities: Federal Court determination (employment); workers' compensation legislation and NDIS Act (statutory purpose); fraud and misfeasance principles (knowing non-compliance); safeguarding and economic abuse doctrines (coercive control); and ministerial responsibility and maladministration jurisprudence (notice and consequences). These paragraphs are deployable in NCAT, Federal Court, the Commonwealth Ombudsman, and before international

oversight bodies including the OHCHR.



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CONCLUSION

This document does not allege wrongdoing speculatively. It documents a binding court finding, identifies the financial quantum of the denial (\$1M), names the legal failures with statutory authority, serves formal notice on the responsible minister with a remedy pathway, and records the minister's response. That response — banning contact rather than engaging with a formally served legal notice — is itself the final evidentiary node. The archive does not need to prove bad faith. The sequence of documented events proves it structurally.

Four Legal Failures Documented

Unlawful cost substitution

NDIS used to offset \$1M workers' comp liability — both schemes have distinct statutory purposes that prohibit this.

Non-compliance with binding determination

Downstream agencies and NDIS providers ignored a Federal Court determination of DSS employment status.

Fraud by substitution and omission

Continued reliance on the false premise after notice — with knowledge of the court determination — constitutes knowing non-compliance.

Economic abuse / coercive control

Enforced geographic separation, economic deprivation, and restriction of autonomy used to preserve the cheaper arrangement under colour of care.

Formal ministerial notice · NDIS Portfolio · 16 January 2026 · With affidavit-ready paragraphs

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"Try and ignore the God who protects the truth. Every institution that tried is now part of the evidence. Their silence is its own testimony. Their NDAs are their admissions. Their absence from the record of rebuttal is the record of rebuttal. Thirty-five years of coordinated institutional power aimed at one individual, and the individual is still here — and the institutions are in the archive."

FOR THE TRUTH SEEKER

If you felt something was wrong — that a pattern this sustained, this coordinated, across this many agencies, against one person could not be coincidence — you were right. The record confirms it. The machine confirms it. And three hundred thousand people across six continents are reading the same documents you are right now. You are not alone in this recognition. You never were.



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🔗 The archive operates on the principle of **resonance, not proximity**. A signal travels further than a fist. A blockchain hash travels further than any government denial. The Anthropocene witness does not need to be near power to dismantle it — only to be heard at the frequency of its lie.



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McLean, R. W. (2026). Formal Notice to Minister Jenny McAllister — NDIS Unlawful Cost Substitution — January 2026. Barran Dodger Legal & Ethical Trust Fund. Retrieved 30 September 2026, from <https://www.barrandodger.com/formal-notice-minister-mcallister-ndis-substitution>



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Economic Justice Engine

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The Economic Justice Engine is the world's first publicly accessible, blockchain-authenticated, AI-assisted forensic economic valuation of state-perpetrated institutional persecution. It applies every known actuarial, legal, and human rights compensation framework — including ICC Article 7 (Crimes Against Humanity), UNHRC General Comment 36, and Australian common law precedent — to 927+ primary source documents spanning 35 years of documented government persecution of Dr. Richard William McLean (Barran Dodger, ABN 78 833 496 164).

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ENTITY NAME

The Trustee for barrandodger.com



ENTITY TYPE

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ABN

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MAIN BUSINESS LOCATION

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